

FEMA: Roles and Responsibilities of Governance Professionals

The article examines the Foreign Exchange Management Act, 1999 (FEMA), which replaced the restrictive FERA to liberalize and regulate India's foreign exchange market. It highlights the vital role of governance professionals—such as Company Secretaries, compliance officers, and legal advisors—in ensuring adherence to FEMA's regulations on foreign investments, remittances, and borrowings. These experts manage regulatory filings, offer legal counsel, and help in address violations through compounding. FEMA represents a move from punitive measures to a more facilitative, compliance-oriented framework that fosters a business-friendly environment.



CS Sheetal Patodiya, ACS

Practicing Company Secretary,
New Delhi
patodiya.heetal@gmail.com

INTRODUCTION

The Foreign Exchange Management Act, 1999 (FEMA) was enacted by the Central Government of India to facilitate external trade, promote orderly development and maintenance of the foreign exchange market in India. It repealed the erstwhile Foreign Exchange Regulation Act, 1973 (FERA), replacing its regulatory and control-centric framework with a more liberal and facilitative regime. FEMA was introduced as part of India's economic reforms to align foreign exchange laws with the objectives of globalization and liberalization, ensuring a more transparent and investor-friendly legal environment.

OBJECTIVES

- Facilitation of External Trade and Payments:** FEMA was enacted to promote the smooth conduct of external trade and facilitate cross-border payments, aligning with India's economic liberalization.
- Orderly Development of the Forex Market:** FEMA aims to regulate and maintain an efficient and stable foreign exchange market in India.
- Classification of Transactions:** FEMA distinguishes foreign exchange dealings into two broad categories—Capital Account Transactions and Current Account Transactions—each governed by specific rules and procedures.

- Balance of Payments Framework:** FEMA governs India's balance of payments, which records all economic transactions between residents of India and the rest of the world, comprising both current and capital account flows.
- Regulation of Capital Movement:** FEMA monitors inflows and outflows of capital, including domestic investment abroad and foreign investment into India, ensuring compliance with national economic priorities.¹

WHO ARE GOVERNANCE PROFESSIONALS?

A governance professional, acting as a trusted advisor to the Board of Directors, performs critical functions integral to the legal and regulatory compliance framework of an organization. One of the core responsibilities includes, strategic counsel on legislative, regulatory, and governance developments. This involves continuous monitoring of statutory and regulatory changes at the central and state levels, as well as judicial pronouncements, that may affect the organisation's operations or governance structures. The professional is required to apprise the Board in a timely and accurate manner, ensuring that the organisation remains compliant with evolving legal norms and best practices. This role also includes advising on requisite amendments to policies or procedures to maintain alignment with corporate governance standards and statutory obligations.

Here's how they are legally acknowledged:

- Company Secretary (CS)**

Statutory Recognition:

- Section 2(24) of the Companies Act, 2013:**

"Company Secretary" or "Secretary" means a Company Secretary as defined in clause (c) of sub-Section (1) of section 2 of the Company Secretaries Act, 1980 (56 of 1980) who is appointed by a company to perform the functions of a Company Secretary under this Act.

¹ <https://www.bajajfinserv.in/>; <https://clearfax.in/>

- **Section 2(25) of the Companies Act, 2013:**

“Company Secretary in Practice” means a Company Secretary who is deemed to be in practice under sub-section (2) of section 2 of the Company Secretaries Act, 1980 (56 of 1980).

- **Section 203 of the Companies Act, 2013:**

Mandates appointment of Company Secretary as a Key Managerial Personnel (KMP) belonging to such class or classes of companies as may be prescribed.

- **Section 205 of the Companies Act, 2013:**

Details the functions of the Company Secretary, including ensuring compliance with applicable laws, guiding the Board on governance matters, and representing before regulators.

2. Compliance Officer

Statutory Recognition:

- **SEBI (LODR) Regulations, 2015, Regulation 6 :**

Every listed entity shall appoint a qualified Company Secretary as the Compliance Officer, responsible for ensuring compliance with securities laws and SEBI regulations.

- **Compliance Officers are also recognized under:**

- ◆ SEBI (Prohibition of Insider Trading) Regulations, 2015
- ◆ SEBI (SAST) Regulations, 2011
- ◆ RBI Master Directions for financial entities

3. Legal Advisor / General Counsel

Legal Advisors or General Counsel, though not expressly defined under any particular statutory provision, are recognized under common law principles as key officers of a company. Their roles stem primarily from contractual engagements and professional ethical standards. Legal Advisors also represent the company in litigation and dispute resolution matters, acting as a legal interface between the organization and external stakeholders, including courts, regulatory authorities, and government bodies.²

RECOGNITION OF GOVERNANCE PROFESSIONALS UNDER FEMA

Although the term “Governance Professional” is not explicitly defined under FEMA, professionals such as

Company Secretaries and Legal Advisors are instrumental in ensuring compliance with its provisions. They assist in adhering to regulations like the Foreign Exchange Management (Non-Debt Instruments) Rules, 2019³. These professionals are responsible for preparing and filing statutory returns with the Reserve Bank of India (RBI) and ensuring timely submissions. They also play a key role in advising companies on cross-border transactions, foreign investments, and foreign exchange regulatory frameworks. Their expertise helps businesses navigate complex compliance requirements under FEMA.

Evolving roles of Governance Professionals:

1. Company Secretaries:

- Ensure organizational compliance with corporate laws, regulatory frameworks, and applicable statutory provisions.
- Serve as a key liaison officer between the Board of Directors and stakeholders, promoting transparency and effective governance communication.
- Advise the Board on evolving governance standards and best practices, thereby enhancing corporate decision-making processes.
- Oversee the implementation of board processes and ensure that board procedures are both followed and regularly reviewed.
- Facilitate statutory reporting and disclosure requirements to ensure accountability and legal conformity.

2. Compliance Officers

- Ensure compliance with applicable regulatory frameworks, including those prescribed under SEBI (LODR) Regulations for listed entities.
- Oversee the development, implementation, and monitoring of internal compliance policies and control systems.
- Liaise and coordinate with regulatory authorities to address statutory requirements and regulatory queries.
- Conduct periodic compliance reviews and risk assessments to mitigate legal and reputational exposure.
- Safeguard the entity’s ethical standards, thereby upholding its corporate integrity and market credibility.⁴

As foreign investments and outbound transactions grow, FEMA performs the double role of being a barrier to ensure fairness and being a facilitator for participation in the global economy.

² Companies Act, 2013, <https://www.mca.gov.in/>

³ <https://www.rbi.org.in/>

⁴ <https://dea.gov.in/>

3. Legal Advisors / General Counsel

- Render strategic legal advice to ensure corporate activities comply with applicable statutes and regulatory frameworks.
- Draft, vet, and negotiate commercial agreements, legal documents, and corporate policies.
- Manage legal disputes, represent the organization in judicial and quasi-judicial forums, and oversee litigation strategy.
- Advise the management on legal risks, regulatory implications, and dispute resolution mechanisms.
- Play a critical role in mitigating legal exposure and safeguarding the company's legal and commercial interests.

KEY FEMA COMPLIANCE AREAS FOR GOVERNANCE PROFESSIONALS

1. Inbound and Outbound Investments (FDI & ODI)

- **Regulatory Framework:** Inbound (FDI) and outbound (ODI) investments are governed under Section 6(2) and 6(2A) of FEMA, 1999, empowering the RBI and the Central Government to regulate capital account transactions involving debt and non-debt instruments, respectively.
- **Applicable Rules:** The Foreign Exchange Management (Non-Debt Instruments) Rules, 2019 serve as the principal regulatory framework for foreign direct investments and overseas direct investments.
- **Compliance with Sectoral Guidelines:** Governance professionals must ensure that all FDI and ODI transactions conform to applicable sectoral caps, prescribed entry routes (automatic or government route), and pricing norms.
- **Mandatory Filings:** Filing of statutory forms such as Form FC-GPR (for fresh issuance) and Form FC-TRS (for transfer of shares) is required with the RBI through the Authorized Dealer (AD) bank.
- **Reporting via FIRMS Portal:** All investment-related disclosures must be made through the Single Master Form (SMF) on the Foreign Investment Reporting and Management System (FIRMS) portal maintained by the RBI.

2. Foreign Contribution and Remittance Regulations Statutory Provisions:

- **Statutory Framework:** Under Section 5 of FEMA, current account transactions are permissible, subject to restrictions imposed by the Central Government in consultation with the Reserve Bank of India.

- **Regulatory Instruments:** The Foreign Exchange Management (Current Account Transactions) Rules, 2000, enumerate transactions that are either prohibited or require prior approval of the Government or the RBI, ensuring regulatory oversight over foreign remittances.⁵
- **Foreign Contributions Governance:** The Foreign Contribution (Regulation) Act (FCRA), 2010 mandates that only entities registered under the Act may lawfully receive and utilize foreign contributions for legitimate purposes, in compliance with prescribed conditions.
- **Compliance Obligations:** Entities must observe ceilings on permissible remittances for education, medical expenses, or family maintenance abroad, and obtain prior approvals for transactions breaching notified thresholds, as per FEMA and FCRA stipulations.

3. External Commercial Borrowings (ECBs)

- **Statutory Authority:** Under Section 6(3)(d) of FEMA, borrowing and lending in foreign exchange by person's resident in India is regulated by the Reserve Bank of India.
- **Regulatory Framework:** The Foreign Exchange Management (Borrowing and Lending) Regulations, 2018 govern the terms, conditions, and eligibility for availing External Commercial Borrowings (ECBs).
- **Compliance Norms:** ECBs must be availed within prescribed sectoral limits, adhere to end-use restrictions, and comply with all-in-cost ceilings and minimum average maturity period (MAMP) requirements.
- **Reporting Obligation:** Borrowers are required to file Form ECB and obtain a Loan Registration Number (LRN) through an Authorized Dealer (AD) bank, in accordance with RBI's procedural directives.

4. Current and Capital Account Transactions Statutory Provisions:

- Capital Account Transactions are defined under Section 2(e) of FEMA, involving changes in assets or liabilities across borders.
- Section 5 allows current account transactions, subject to restrictions imposed by the Central Government in public interest.
- Section 6 authorizes the RBI and Central Government to regulate or restrict capital account transactions through rules and notifications.
- Entities must accurately classify transactions, avoid prohibited capital account dealings, and obtain prior approvals wherever mandated.⁶

⁵ <https://www.mha.gov.in/>

⁶ <https://abhinavgulechha.com/> <https://ctconline.org/>

5. NRI Investments and Repatriation Rules

- NRI investments are governed by the *Foreign Exchange Management (Non-Debt Instruments) Rules, 2019*, permitting investment in specified sectors under the automatic route.
- Repatriation of assets is regulated by the *Foreign Exchange Management (Remittance of Assets) Regulations, 2016*, subject to prescribed limits and conditions.
- Investments must be routed through authorized banking channels, such as NRE or FCNR accounts, to ensure compliance.
- Repatriation of sale proceeds and income is allowed post-tax compliance, as per RBI and FEMA guidelines.

CHALLENGES IN FEMA COMPLIANCE RESOLVED BY GOVERNANCE PROFESSIONALS

Case 1: Delayed Reporting of FDI—Resolved through Compounding

A mid-sized IT services company received FDI from a Singapore-based investor in exchange for equity shares but failed to submit Form FC-GPR within the 30-day period mandated by FEMA due to a transition in compliance staff. This delay amounted to a contravention under FEMA regulations, attracting possible penalties. A governance professional (Company Secretary) was engaged to address the issue. The professional traced the transaction history, coordinated with the Authorised Dealer Bank (AD), and prepared a compounding application under Section 13 of FEMA, explaining the cause of delay. The RBI accepted the explanation and imposed only a nominal compounding fee. This case shows how governance professionals can help companies manage FEMA compliance lapses effectively through timely legal action and accurate regulatory filings.

Case 2: Structuring ODI for Start-up Expansion

A tech start-up in Bengaluru intended to establish a wholly-owned subsidiary (WOS) in the UK for research and development but was unaware of the revised ODI (Overseas Direct Investment) Rules, 2022, which introduced changes in financial commitment classification and valuation requirements. A Company Secretary stepped in to provide regulatory guidance, advising on the appropriate investment route (automatic or approval-based), ensuring compliance with valuation norms under FEMA and ODI regulations, and facilitating the filing of Form FC and ODI Part I and II. The professional also managed post-investment compliance, including the Annual Performance Report (APR).⁷

This proactive approach helped the company to avoid regulatory scrutiny and strengthened its governance profile, enabling it to secure further venture capital funding.

PENALTIES AND COMPOUNDING UNDER FEMA

1. Civil Nature of Penalties under FEMA

- Under the Foreign Exchange Management Act, 1999 (FEMA), penalties are civil in nature, unlike the criminal penalties under the earlier Foreign Exchange Regulation Act, 1973 (FERA).
- FEMA was introduced to liberalize foreign exchange laws and promote voluntary compliance by shifting focus from punishment to regulation and management.
- As per Section 13 of FEMA, contraventions may attract penalties up to ₹10 lakh or thrice the amount involved, whichever is higher.
- This civil framework under FEMA encourages timely settlements, reduces litigation, and fosters a more business-friendly compliance environment.
- The Act does not provide for imprisonment or criminal prosecution for violations, differentiating it from FERA.

2. Power of Compounding

- Compounding under FEMA enables the Reserve Bank of India (RBI) or designated authorities to settle contraventions through payment of a fee, by passing lengthy court or tribunal proceedings.
- It is applicable mainly to non-wilful violations, where the breach occurred without fraudulent intent or deliberate wrongdoing.
- The compounding mechanism facilitates speedy resolution of cases, reducing disputes and promoting compliance for both businesses and regulators.

RBI provides detailed guidelines and fee structures for compounding, depending on the nature and seriousness of the contravention.⁸

3. Role of Governance Professionals

- Governance professionals such as Company Secretaries, Compliance Officers, and Legal Advisors play a key role in ensuring FEMA compliance and managing any regulatory breaches.
- They are responsible for identifying potential contraventions by monitoring foreign exchange transactions and assessing adherence to FEMA provisions.
- In the event of a violation, they draft and file detailed compounding applications, including

⁷ RBI Compounding Orders – RBI Website

⁸ RBI Compounding Orders – RBI Website

necessary explanations and supporting documentation, to be submitted to the RBI or concerned authority.

- They also coordinate with the RBI, handle communications, track the status of applications, and ensure all regulatory timelines and procedural requirements are met for efficient resolution.

Standard Chartered Bank and Ors. vs. Directorate of Enforcement and Ors. (2005) 4 SCC 530 – Supreme Court

- **Key Point:** Though this case also dealt with FERA, the Court discussed the fundamental changes introduced by FEMA.
- **Observation:** The Court acknowledged that FEMA decriminalizes violations, treating them as civil wrongs, thereby promoting voluntary compliance and ease of doing business.

Aman Lekhi vs. Directorate of Enforcement – Delhi High Court (2010)

- **Observation:** Penalties under FEMA are monetary and compensatory, and not criminal. Therefore, no stigma of criminality is attached to those proceedings.⁹

FEMA REPORTING REQUIREMENTS

1. Annual Return on Foreign Liabilities and Assets (FLA)

- **What is it?** The FLA Return is a yearly report that Indian companies must file if they received Foreign Direct Investment (FDI) or made Overseas Direct Investments (ODI) during or before the current financial year.
- **Who has to file it?** All Indian companies, LLPs, and other entities that hold foreign assets or have foreign liabilities — even if there were no fresh transactions in the current year.
- **When and how to file?** The return must be submitted online through the FLAIR portal by July 15 every year.
- **What information is required?** It includes details of:
 - ♦ Foreign liabilities like FDI, External Commercial Borrowings (ECBs), etc.
 - ♦ Foreign assets like investments made abroad (equity, debt instruments, etc.).
- **Why is it important?** The RBI uses this data to track the flow of foreign capital and

maintain India's Balance of Payments (BoP) statistics.¹⁰

- **What happens if you don't file?** Non-filing is considered a violation of FEMA Section 13, which can result in:
 - ♦ A penalty up to ₹2 lakh for the first offense.
 - ♦ ₹5,000 per day for each day of continued delay.
 - ♦ Possible difficulties in receiving future foreign investments or approvals from regulatory bodies.

2. Single Master Form (SMF) – Simplified Overview

- **What is SMF?** The Single Master Form (SMF) is a unified online form introduced by the Reserve Bank of India (RBI) to simplify and consolidate all FDI-related filings.
- **Where is it filed?** It is submitted through the FIRMS (Foreign Investment Reporting and Management System) portal hosted by the RBI.
- **Who needs to file?** All Indian entities that have received foreign investment must file through SMF.
- **Entity Master Form (EMF) prerequisite:** Before filing SMF, companies must register their basic information by filing the Entity Master Form (EMF) on the FIRMS portal.
- **Why is SMF important?** SMF ensures streamlined compliance, improves data accuracy, and allows RBI to monitor FDI flows and sectoral limits effectively.
- **Mandatory filing:** Filing through SMF is compulsory for all eligible transactions involving foreign investment.¹¹

Consequences of Non-Compliance:

- ♦ Entities may lose access to FIRMS, blocking further FDI filings.
- ♦ Subject to penalties under FEMA, as non-reporting is a violation.
- ♦ Regulatory delays in approvals for future investments or remittances.

3. Advance Reporting Form (ARF), Form FC-GPR, FC-TRS, etc.

- **Purpose of Reporting Forms:** These forms are mandatory under FEMA to report various

⁹ Supreme Court and High Court judgments clarifying the civil nature of penalties under FEMA

¹⁰ <https://firms.rbi.org.in/firms/faces/pages/login.xhtml>

¹¹ <https://www.vjmglobal.com/>; <https://www.rbi.org.in/>

stages of foreign direct investment (FDI) — from receiving funds to issuing or transferring shares.

- **Advance Reporting Form (ARF):** Filed within 30 days of receiving FDI, ARF is submitted to the Authorized Dealer Bank and includes details of the foreign investor, amount received, and payment mode. It allows RBI to monitor incoming foreign capital before share allotment.
- **Form FC-GPR:** Filed within 30 days after issuing shares or convertible instruments to foreign investors, it includes the updated shareholding pattern, valuation report, board resolution, and KYC documents.
- **Form FC-TRS:** Required when shares are transferred between a resident and non-resident (or between non-residents in eligible cases). It must be filed within 60 days of transfer and includes the agreement, consent letter, and KYC of both parties.
- **Compliance Importance:** These forms ensure compliance with FDI regulations, help RBI track sectoral limits, pricing compliance, and ownership changes.
- **Consequences of Non-Compliance:** Non-reporting can result in:
 - ◆ Investment being treated as non-compliant.
 - ◆ Penalties under FEMA.
 - ◆ Restrictions on repatriation of profits or investment proceeds.

CONSEQUENCES OF NON-FILING OR DELAYED FILING

- **Financial Penalties:** As per Section 13 of FEMA, failure to file required forms can attract a penalty of up to ₹2,00,000 for the first instance, and ₹5,000 per day for each day of continuing default.
- **Compounding Requirement:** Entities in default may have to undergo compounding proceedings with the RBI, which is often a time-consuming and expensive process.
- **Regulatory Scrutiny:** Non-compliance flags the company during regulatory reviews and may lead to increased scrutiny from RBI, AD Banks, and other financial authorities.
- **Credibility Damage:** Repeated or serious defaults can damage the company's reputation with both investors and regulators, impacting future capital inflows.

- **Delays in Future Transactions:** Companies may face delays or rejections when applying for fresh FDI, ECBs, or ODI approvals due to non-compliance history.
- **Barriers to Growth Activities:** Non-compliant companies may encounter obstacles during M&A deals, due diligence processes, IPOs, or private equity rounds.
- **Bank-Level Restrictions:** Authorized Dealer (AD) Banks may refuse to process future FDI/ODI transactions until pending compliance issues are resolved.
- **Legal Exposure:** Unresolved violations may expose companies to further legal action or investigation, especially in cross-border financial transactions.

FEMA AUDIT AND CERTIFICATION

1. FEMA Audit Process and Scope:

- **Purpose of FEMA Audits:** Conducted to evaluate whether companies have complied with FEMA regulations while undertaking foreign exchange transactions such as FDI, ODI, or ECB.
- **Types of Audits:** These may be internal audits carried out by compliance professionals or regulatory audits conducted by the RBI or its authorized agencies.
- **Compliance Verification:** Audits check whether cross-border transactions are reported on time, follow permitted entry routes (automatic or approval), and adhere to sectoral limits and pricing rules.
- **Documentation Review:** The process also involves reviewing supporting documents like KYC records, contracts, valuation reports, and board resolutions to ensure accuracy and legitimacy.

2. Certification Work under FEMA (Rephrased)¹²

- **Role in ECB Compliance:** FEMA professionals such as CSs and CAs are responsible for certifying the utilization, disbursement, and repayment of External Commercial Borrowings (ECBs), as per the RBI's ECB Master Directions.
- **FDI-Related Filings:** They provide mandatory certification for key FDI filings, including Form FC-GPR and Form FC-TRS, ensuring proper documentation and valuation as per FEMA norms.
- **Valuation and Regulatory Certifications:** Certifications include verifying valuation reports

¹² <https://www.vjmglobal.com/>; <https://www.rbi.org.in/>

issued by qualified professionals and ensuring compliance with sectoral limits and pricing guidelines for foreign investments.

- **Annual and Transactional Returns:** Professionals also assist in certifying Annual Return on Foreign Liabilities and Assets (FLA), Overseas Direct Investment (ODI) forms, and other declarations required for foreign exchange transactions.

3. Common Errors in FEMA Audits and Mitigation by Professionals

- **Delay in Regulatory Filings:** Companies often miss critical reporting deadlines (e.g., FC-GPR within 30 days, FC-TRS within 60 days). FEMA professionals mitigate this by maintaining compliance calendars and conducting regular follow-ups.
- **Documentation Discrepancies:** Errors in KYC records, valuation reports, or shareholding data may result in form rejection. Professionals ensure accurate documentation by thoroughly verifying details and coordinating with Authorized Dealer (AD) banks.
- **Incorrect FDI Route Selection:** Choosing the wrong investment route (e.g., automatic instead of approval route) can breach FEMA rules. Experts prevent this by reviewing sector-specific FDI caps and applicable entry conditions before processing transactions.
- **Proactive Risk Management:** By implementing pre-audit reviews and internal compliance mechanisms, professionals detect potential FEMA breaches early and guide companies on corrective actions before they escalate.¹³

CONCLUSION

The FEMA has attained increased vitality in guarding legal, transparent, and efficient capital flows, thanks to the growth in the complexity of cross-border financial transactions. As foreign investments and outbound transactions grow, FEMA performs the double role of being a barrier to ensure fairness and being a facilitator for participation in the global economy. In such a background, governance professionals like Company Secretaries, Chartered Accountants, and Legal Advisors come into the forefront. They are no longer technicians of compliance but strategic participants in helping businesses align their international financial activities with the changing legal landscape. The environment is getting more and more dynamic with ever new trends of frequent updates from the RBI, the introduction of a slew of digital portals, and their integration with other legal regimes like the Companies

Act, 2013 and SEBI guidelines. Therefore, the need has arisen for constant learning and adaptability.

Further, with the digital governance, platforms like FIRMS, SMF, and FLAIR, becoming more entrenched, it has become necessary for professionals to be technically equipped. However, through the employment of digital tools and other technologies like AI, conformity can be streamlined and risks are recognized well before time. Frequent interactions with regulators and transparent methodologies will allow organizations for timely approvals and foster long-term trust with authorities.

As India sets up a global economic hub, FEMA will remain the core in drawing the major features of world trade and investment. Governance professionals ought to take lead in this journey, staying up to date with all advancements, foreseeing all changes and digitally equipping themselves so that businesses can flourish without straying away from regulation. Their significant contribution has helped and will continue to do so in ensuring that India remains credible and competitive in the global financial ecosystem.

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¹³ <https://www.rbi.org.in/-> ECB Master Directions; <https://firms.rbi.org.in/> FDI Reporting Guidelines